

From: [Stephen Casper](#)
To: [ostp-ai-rfi](#)
Subject: [External] AI Action Plan comment
Date: Saturday, February 8, 2025 6:38:12 PM

CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders.

As an academic who studies AI policy, I would recommend focusing on "*process regulation*" as the federal government's central strategy for pro AI innovation and insight governance. Unlike "substantive regulation" which limits what developers can do, "process regulation" regulates how they can do it. For example, ingredient bans are substantive regulation and requirements for nutrition facts are process regulation. Thus, I believe that process regulation (e.g. requiring documentation from developers) would be a pro-innovation approach that also allows for a more informed public.

As an example of a process regulation-focused draft, see the [Preserving American Dominance in Artificial Intelligence Act](#) draft from last congress which was introduced by a senate republican.

Best,

All e-mails to and from this account are for NITRD official use only and subject to certain disclosure requirements.
If you have received this e-mail in error, we ask that you notify the sender and delete it immediately.